

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 2, 2026, AT 8:30 A.M.

unless the defendant has not acted in good faith or there is substantial prejudice to the plaintiff if leave is granted. (*Silver Organization Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–100; *Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902–03.)

Defendant does not attach a proposed cross-complaint to his motion for the court's consideration. Thus, the court is unable to determine whether any alleged causes of action are pled with minimal sufficiency to survive a demurrer. Accordingly, defendant's motion is denied without prejudice.

15. S-CV-0056864 ESTATE OF LEONIDAS CASTRO v. JANSEN, WILL

Defendant Will Bryan Jansen's Motion to Strike Portions of Plaintiffs' Complaint

Preliminary Matters

The court notes there is insufficient evidence the parties complied with Placer County Local Rule 20.2.1, which provides "Prior to filing any motion or demurrer, the moving party must make a reasonable and good faith attempt to resolve the matter, and if resolution is not possible, must attempt to coordinate hearing dates with any opposing parties. A declaration setting forth facts supporting such attempt must be filed with the motion. Orders for examination are exempt from the requirements of this section." (Placer County Local Rule, rule 20.2.1.)

Additionally, defendant's notice of motion does not include the required language found in Placer County Local Rule 20.2.3, subdivision (C)(1).

The parties are admonished they must comply with the Placer County Local Rules for subsequent filings.

Ruling on Motion

Defendant moves to strike (1) lines 7 through 10 on page 15, (2) lines 24 through 25 on page 15, and (3) line 19 on page 16 in plaintiffs' complaint regarding the punitive damages allegations on the grounds the complaint does not allege a basis for such relief. (Code Civ. Proc. §§ 435, 436.)

Punitive damages are available "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294, subd. (a).) Malice is "conduct which is intended by the defendant to cause

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injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)

Here, when taking the factual allegations in the complaint as true, plaintiffs do not allege facts sufficient to state the punitive damages allegations and relief. Accordingly, defendant’s motion to strike is granted with leave to amend.

Plaintiffs may file an amended complaint on or before **July 13, 2026**.

16. S-CV-0057858 HATAMI, JULIE v. HARTFORD, JOHN

Plaintiffs/judgment creditors’ application for order for sale of dwelling and adjacent vacant lot is continued to **July 9, 2026, at 8:30 a.m. in Department 3**.

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